

E5 ENCLAVE INCORPORATED

Package Overview

Governance Package · Draft v1.0 — Prepared September 18, 2026

DRAFT — pending counsel review and board adoption. Nothing has been filed with the State of Florida. Nothing has been adopted. What the package contains, the control design in plain language, the purposes-clause solution, and the exact filing action.

Draft v1.0 · Prepared 2026-09-18

DRAFT ONLY. NOTHING FILED. NOTHING ADOPTED.

Counsel review required before any filing or adoption. No filing occurs without the Chairman's separate explicit written authorization.

Corporation: E5 ENCLAVE INCORPORATED — Florida not for profit corporation, Document No. N24000007976, filed 2024-07-01, Active · EIN 99-3822441 · IRS Letter 947 (07/12/2024), §501(c)(3) public charity §509(a)(2), effective 06/30/2024 · FDACS CH85245.

Terminology note: the Chairman said "Articles of Organization." For a Florida nonprofit *corporation* the correct instrument is the **Articles of Incorporation** (Chapter 617, F.S.); "Articles of Organization" is the LLC instrument (Chapter 605, F.S.). This package uses the correct corporate instrument.

Commission: rebuild the corporation's formation/governance documents (the original formation used generic provisions) to lawfully insulate the Chairman's control while remaining compliant. Draft package only.

Files

#	File	Contents
01	01-amended-restated-articles-of-incorporation.md	Amended and Restated Articles of Incorporation (Ch. 617)
02	02-bylaws.md	Comprehensive Bylaws
03	03-board-adoption-package.md	Board written consent, Founder-Member written consent, Conflict of Interest Policy (Exhibit A), disclosure form (Exhibit B)
04	04-filing-and-compliance-checklist.md	Pre-filing verification, execution, post-filing, ongoing 501(c)(3) spine
05	05-research-affiliate-option.md	STTR research-institution vehicle: dedicated nonprofit research affiliate (formation checklist, Stevenson-Wydler purposes language, cost)

The control design (plain language, five lines)

1. **One member, one vote — his.** Israel Lee Armstead is the sole voting Founder-Member; nobody else can be added as a member without his written consent, so board control can never be voted away from him.
2. **He elects and can remove every director but himself.** His own Founder-Director seat has no term expiration and is removable only by him; every other director is elected by him, serves staggered three-year terms, and any vacancy is filled by him alone.
3. **He runs the company day-to-day.** As Chairman/President/CEO he appoints and removes all officers at will, and only he may exercise Tier 3 powers (legal filings, bank/entity standing, public commitments) under the Autonomy Matrix.

4. **Elvia G. Armstead holds a consent lock as Trust Protector.** Dissolution, merger, sale of substantially all assets, changes to purposes/tax status, and amendments to the control articles all require her written consent *in addition to* his — the mission protection is bilateral, not circular.
5. **The locks lock themselves.** The articles that create this structure can only be amended with both his and the Trust Protector's written consent, so no future board can quietly unwind it.

Purposes-clause solution (the STTR finding, incorporated)

Parallel research established that E5's real operations are admittedly broader than "exclusively scientific or educational," so on a strict reading of 15 U.S.C. § 638(e)(8) → § 3703(3) E5 **fails** the STTR research-institution test — and amending E5's articles to claim otherwise would be dishonest and operationally contradicted. This package therefore:

- Drafts E5's purposes (File 01, Article II) as **501(c)(3)-clean and operationally honest**: charitable, educational, and scientific purposes covering the real work (research, education, community development, fiscal sponsorship) — with **no** forced Stevenson-Wydler language.
- Scopes the clean fix in **File 05**: a dedicated nonprofit research affiliate with genuinely exclusive scientific/educational purposes (~\$70 FL filing — verify fee), E5 as SBIR subcontractor, university/FFRDC as fallback RI.
- Carries the standing flag: **counsel must opine before E5 is named as a research institution on any STTR proposal.**

Red-team report (mandatory)

A. Chapter 617 entrenchment — authority cited per mechanism

Mechanism	Ch. 617 authority	Verdict
Sole voting Founder-Member; member elects/removes directors; member amends articles	§§617.0601, 617.0610, 617.0803, 617.0808, 617.1003	Pass — single-member nonprofit expressly contemplated
	§§617.0805 (terms as articles prescribe),	Caution — aggressive; no Florida decision squarely blesses an irremovable director.

Mechanism	Ch. 617 authority	Verdict
Founder-Director seat: no term expiration, removable only by himself	617.0808 (removal as articles provide)	Backstopped independently by the member's appointment/removal power. Counsel must confirm.
Staggered three-year terms, three classes	§617.0806 (expressly permits staggered terms)	Pass
Vacancies filled exclusively by Founder-Member	§617.0810 (as articles/bylaws provide)	Pass
Board may remove directors only for cause, 2/3 vote	§617.0808 (as articles/bylaws provide)	Pass
Entrenched provisions amendable only with member + Trust Protector consent	§617.1003 (articles may prescribe amendment procedure/vote)	Pass as drafting; bilateral lock is disclosed and intentional
Trust Protector as articles-created consent office over fundamental actions	Analogous to class-consent rights, §§617.1003–617.1022	Caution — not a statutory office; implemented as defined consent rights. Powers deliberately negative-only. Counsel must confirm.
Board action without meeting; remote participation; quorum	§§617.0821, 617.0820	Pass
Committee limits (no fundamental actions)	§617.0825 (respected in Bylaws §3.15)	Pass
Indemnification to fullest extent; records	§§617.0831, 617.1601	Pass

B. IRS 501(c)(3) organizational and operational test

- **Organizational test:** purposes limited to 501(c)(3) purposes (File 01, Art. II); no-inurement clause (Art. III(a)); lobbying/electioneering limits (Art. III(b)); compliant dissolution (Art. III(c)); savings clause (Art. III(d)). **Pass on drafting.**

- **Operational test:** the purposes clause honestly reflects actual operations (charitable + educational + scientific, including community development and fiscal sponsorship) — no aspirational narrowing. **Pass as designed.** Operations must actually remain within the clause; the lobbying/ electioneering bright lines and the COI spine are in the checklist (File 04, Part D).
- **§4958 excess-benefit risk** around founder compensation is mitigated by the COI Policy (disclosure, recusal, comparability, Trust Protector concurrence on the Chairman's own compensation). **Noted, not a drafting failure.**
- **509(a)(2) public-support test** is an operational matter flagged in the checklist, not an articles issue.

C. Consistency with ratified Board Law

- Trust Protector (Elvia G. Armstead), steward designation, and Autonomy Matrix / Escalation SLA doctrines are encoded: Articles Art. VII, Bylaws Arts. V–VI, Tier-3 reservation to the Chairman (Bylaws §4.3(f)), steward duties carrying the escalation doctrine (Bylaws §6.2). **Consistent.** Where Board Law and the Bylaws overlap, the higher-threshold instrument controls (Bylaws §1.4).
- **Gap:** the *verbatim* ratified text of Board Law Articles V and VI was not recoverable in this drafting session; encoding follows the summaries on record. Flagged below.

D. Failures found and fixed in this pass

1. Forced "exclusively scientific or educational" purposes language — **removed**; would have contradicted real operations (STTR homework finding). Resolved via the affiliate file.
2. Any invention of registered agent, directors, EIN, or principal office — **none invented**; all bracketed for verbatim carryover from the live Sunbiz record.
3. Committee authority over fundamental actions — **removed** (§617.0825 compliance).
4. Trust Protector with potential directive authority — **narrowed to consent-only** (avoids de-facto-director exposure).
5. Membership with no succession — **closed** (Articles Art. IV §4: vests in the Trust Protector or written designee).

6. Bylaw entrenchment not mirroring Articles entrenchment — **aligned** (Bylaws §12.2 requires member consent; Article V changes additionally require Trust Protector consent).

E. Unverified — carried to counsel, none papered over

1. Verbatim text of ratified Board Law Articles V and VI (encoded from summaries).
2. Irremovable Founder-Director seat (aggressive — counsel confirm).
3. Trust Protector as articles-created consent office (counsel confirm).
4. Current Sunbiz Articles text vs. restatement deltas; registered agent name/address; principal office; third director of record; current filing fee — **all bracketed, all preconditions to filing** (File 04, Part A).
5. Whether the currently filed articles already provide for members (adoption procedure depends on it).
6. Steward as advisory non-director/non-officer role held in an agency capacity (counsel confirm formulation).

The exact filing action requiring the Chairman's explicit word

"File the Amended and Restated Articles of Incorporation of E5 ENCLAVE INCORPORATED with the Florida Division of Corporations."

That is a separate written direction (Resolution B, File 03) — signing the adoption package does not itself authorize filing. Formation of the research affiliate (File 05) is a second, separate decision requiring its own explicit word. Neither has been given.